

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Musarrat Hilali
Justice Irfan Saadat Khan

Civil Petition No. 927-P of 2025

(Against the judgment dated 18.09.2025 of the Peshawar High Court, Mingora Bench (Dar-ul-Qaza), Swat passed in W.P. No. 245-M/2013)

Sahibzada and others

...Petitioner(s)

Versus

Muhammad Ayub and others

...Respondent(s)

For the Petitioner(s) : Mr. Sawar Khan, ASC

For the Respondent(s) : N.R

Date of Hearing : 27.04.2026

ORDER

Irfan Saadat Khan, J.- Through this Civil Petition for Leave to Appeal, the petitioners have assailed the legality and correctness of the judgment dated 18.09.2025, rendered by the learned Peshawar High Court, Mingora Bench (Dar-ul-Qaza), Swat. By way of the impugned judgment, the High Court dismissed the petitioners' Writ Petition No. 245-M/2013, thereby affirming the findings of the learned Member-II, Board of Revenue, which had restored the decree for eviction and recovery of lease money originally passed by the trial court.

2. Succinctly stated, the factual backdrop of this controversy is that the respondents (landlords) instituted a suit for possession/ejectment and recovery of rent/lease money regarding the suit property situated in District Malakand. The petitioners contested the suit, primarily relying on their status as long-term cultivators and asserting a "de facto tenancy" that, in their view, transcended the formal expiry of the written lease. The learned trial

court (DDOR/AC 1st Grade, Dargai), after recording evidence and hearing the parties, decreed the suit in favor of the respondents on 28.07.2010. The learned Member-II, Board of Revenue, vide order dated 25.04.2013, however, set aside the intervening orders of the Additional Commissioner and restored the trial court's findings. The petitioners' subsequent challenge before the High Court met with dismissal via the impugned judgment.

3. Mr. Sawar Khan, learned ASC for the petitioners, has vehemently contended that the High Court has failed to exercise its constitutional jurisdiction to correct a "patent error of law". He maintained that the petitioners had made significant improvements to the land, which were ignored by the revenue fora, and that the shifting of the burden of proof regarding a renewed lease was legally unsustainable. He further argued that the principles of "equity" and "tenancy protection" favor the retention of possession by a cultivator who has remained on the land for decades.

4. We have heard the learned counsel for the petitioners at considerable length and have perused the material available on record with his assistance.

5. The primary question before us pertains to the scope of interference in revisional findings. The law on this point is well-settled. In *Atiq-ur-Rehman v. Muhammad Amin* (PLD 2006 SC 309), this Court held that the scope of revisional jurisdiction is strictly confined to jurisdictional error, patent illegality, or a visible case of misreading or non-reading of evidence. The High Court and the Revenue Board are not permitted to interfere for the mere fact that a fresh appraisal of evidence might suggest "another view" of the matter. By restoring the trial court's decree, the Member-II,

Board of Revenue, essentially corrected a misapplication of the law by the appellate forum, thereby acting within the parameters of revisional authority.

6. Furthermore, as established in *Ahmad Nawaz Khan v. Muhammad Jaffar Khan* (2010 SCMR 984) and *Sultan Muhammad v. Muhammad Qasim* (2010 SCMR 1630), the High Court has extremely limited jurisdiction to interfere with concurrent conclusions arrived at by lower authorities. At the revisional stage, concurrent findings of fact are not open for deliberation unless the conclusion drawn is perverse or contrary to the law or was the result of misreading or non-reading of the evidence. In the case at hand, the revenue authorities, after a proper appraisal of the evidence concluded that the petitioners had no legal right to retain possession after the termination of the tenancy. These findings of fact, in our view, are not open to any interference. The learned counsel appearing before us has failed to point out any misreading or non-reading of the evidence by the fora below, or even any illegality or jurisdictional defect so as to justify interference by this Court under Article 185(3) of the Constitution of Islamic Republic of Pakistan, 1973.

7. We must also observe the petitioners' conduct in this litigation. It has candidly been admitted that the petitioners have remained in peaceful cultivation and occupation of the suit land for over twelve years without paying a single penny as rent or lease money to the respondents. The law of tenancy is governed by the principle of "Judicial Comity" and the statutory obligation that the right to occupy is inextricably linked to the obligation to pay rent. A tenant cannot repudiate the landlord's dues while simultaneously

seeking the protection of the law to retain possession. The maxim "Vigilantibus non dormientibus jura subveniunt" (the law assists those who are vigilant of their duties, not those who sleep over them) applies with full force in the present case. By failing to fulfill their primary contractual and statutory obligation of paying rent, the petitioners have approached the Court with "unclean hands" and are, therefore, disentitled to any equitable or discretionary relief.

8. The learned High Court correctly observed that its jurisdiction under Article 199 is limited to correcting jurisdictional defects and cannot be used to substitute its own opinion for that of specialized revenue forum, particularly when those findings were based on a sound appraisal of the evidence on record. We, therefore, find no "legal infirmity" or "patent error" in the impugned judgment that would warrant the grant of leave.

9. In view of the above, we are of the firm view that the petitioners are merely seeking to perpetuate their unauthorized occupation of the suit land through the medium of frivolous litigation. The petition, being devoid of any merit, is hereby dismissed and leave to appeal is refused.

Peshawar, the
27th April, 2026
Arshed/Zainab Qazi, Judicial LC
Approved for Reporting